

*Student Education Record
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SETTLEMENT AGREEMENT, RELEASE AND WAIVER

This Settlement Agreement, Release and Waiver (hereinafter "Agreement") is entered into between _____ and _____ ("Parents" or "_____"), individually and on behalf of their daughter _____ ("Student" or "_____"), and the Brecksville-Broadview Heights City School District Board of Education ("District" or "Board") (collectively, "Parties"). In consideration for the mutual promises contained herein, the Parties agree as follows:

1. _____ qualified as a child with a disability under the Individuals with Disabilities Education Improvement Act ("IDEA") under the category of speech or language impairment until April 14, 2021. Parents dispute that _____ was no longer eligible for IDEA services and asserted that she should have been found eligible under the category of specific learning disability. The District denies that _____ is eligible for services under IDEA.
2. The Parties have reached this compromise Agreement to avoid the expense, inconvenience, and potential acrimony of a due process hearing under the IDEA and Ohio's corresponding laws. The District does not admit that any educational evaluations, services, and/or decisions are/were inappropriate. Parents do not admit that they are/were appropriate.
3. In consideration of any for the promises and mutual covenants set forth herein, the Parties agree as follows:
 - a. During the 2022-2023 school year, the District will provide _____ with Tier 2 reading intervention services using a multisensory teaching approach ("MTA"). These services will be provided in the amount of 30 minutes per day, five days per week until such time as _____ is found to be eligible to exit the program pursuant to MTA criteria. The Parties agree that a meeting shall be convened to review _____ MTA data before terminating services once mastery criteria have been met. Parents agree that, should they subsequently challenge _____ exit from MTA services, _____ will not continue to receive said services during the period of any such challenge or dispute.
 - b. Parents agree to waive their right to request an independent educational evaluation in relation to _____ April 14, 2021 evaluation team report with which they disagreed. Both Parties shall retain the right to refer _____ for an initial evaluation under IDEA, if warranted, during the 2022-2023 school year or thereafter. The District shall retain the right to refuse to initiate an evaluation requested by Parents and Parents shall retain the right to refuse any evaluation requested by the District.
4. The District will cause payment in the amount of two thousand dollars (\$2,000.00) to be made to Michelle McGuire for services rendered to Parent and with the education of Student. Said payment will be made within twenty (20) business days after (1) the

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District's counsel receives an itemized statement and bill/invoice, including dates of services rendered, description of services, time expended, and hourly rate, reflecting fees charged to Parent by her attorney and (2) the District's counsel receives the taxpayer ID for Michelle McGuire. Payments made under this paragraph shall not be construed as an agreement or admission that the hourly rate is usual and customary in the industry, area, and/or for the level of experience of counsel for Parent.

5. In consideration of the promises and commitments of the Board, as set forth in this Agreement, Parents, on their own behalf and on behalf of , agree that all of the issues that could have been raised in a request for an impartial due process hearing are resolved by this Agreement. Parents, on their own behalf and on behalf of , forever release and discharge the Board, including the individual Board members, employees, and agents in their official capacities, (collectively referred to as "the Board and its Agents"), from any and all claims, demands, actions, causes of action or suits at law or in equity of whatsoever kind and nature (including administrative complaints with the Ohio Department of Education and the United States Department of Education Office for Civil Rights), which Parents and Student may have had, now have, or may now or hereafter assert against the Board and its Agents with respect to and her education in and through the District (i.e., the District's offer and/or provision of a free and appropriate public education to) through the date of execution of this Agreement. This discharge of any liability includes, but is not limited to, a release of all claims arising under Section 1983 of the Civil Rights Act (42 U.S.C. §1983), 20 U.S.C. §§ 1400 *et seq.* (i.e., the Individuals with Disabilities Education Improvement Act), Section 504 of the Rehabilitation Act (29 U.S.C. § 794), the Americans with Disabilities Act (42 U.S.C. §12101), Ohio Revised Code Chapters 2744 and 3323, other civil rights laws, regulations that implement the above-referenced statutes. Notwithstanding the preceding, Parents retain all their rights under applicable laws and regulations to enforce this Agreement.
6. Parents (individually and on behalf of) and the District agree to keep the existence of this Agreement and the terms and the contents of this Agreement confidential and will not release it or discuss it, in writing or orally, with third parties. Specifically, they agree not to share this Agreement or the terms of this Agreement with anyone other than the following: (a) Parents' or District's lawyers and (b) courts and mediators as necessary. The individuals and organizations referenced in (a) shall be directed by Parents and the District to keep this document and its terms confidential, and they shall be informed by the Parents that this document constitutes a student education record that is protected under FERPA and Ohio Revised Code Section 3319.321. If asked about their dispute with the District, Parents shall respond only that it has been satisfactorily resolved.
7. Parents expressly waive their right to initiate a complaint with the Ohio Department of Education related to any aspect of Student's education arising on or before the date of execution of this Agreement. Additionally, Parents waive their right to file a complaint with the U.S. Department of Education's Office for Civil Rights concerning any aspect of Student's education arising prior to the execution of this Agreement. Parents affirmatively represent that they have initiated no such complaints prior to execution of this Agreement.

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8. If and/or her legal representative(s), as designated by a Court or Parents, ever initiate any legal proceedings seeking to invalidate or set aside all of or any portions of this Agreement, Parents shall hold the District harmless and indemnify the District for any liability, judgment, legal fees, or other costs and expenses arising from such legal proceedings.
9. District and Parents agree that the provisions of this Agreement can only be modified in writing.
10. The Parties acknowledge that they have read this Settlement Agreement, Release, and Waiver, and fully understand its provisions. The Parties further acknowledge that they have had an opportunity to consult with legal counsel of their choosing to consider its terms before signing this Agreement. The Parties further declare and acknowledge that no promises or agreement not expressly included in this Agreement contains the entire agreement between the Parties. The Parties affirm they are signing this Agreement of their own free and voluntary will.
11. This Agreement is not precedent setting. The Parties expressly agree that this Agreement shall have no bearing on Student's current and future educational programming and educational placement. As such, Parents agree that they are prohibited from introducing this Agreement in any future due process proceeding for the purpose of establishing Lia's need for compensatory and/or recovery services, or for any other purpose.
12. This Agreement is comprehensive with respect to the sums to be paid to the benefit of Parents, and Parents and their attorney(s) agree that they shall make no application to a court for, or in any other manner seek fees and/or costs in connection with, the above-styled matter. Except as provided in this Agreement, the Parties shall bear their own costs in connection with this matter.

For herself and on behalf of _____

7/9/22

Date

For himself and on behalf of _____

7/9/22

Date

Cynthia Tomasetti, Director of Pupil Services
On behalf of the Brecksville-Broadview

Date

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Heights School District Board of Education

Craig Yaniglos, Treasurer/CFO
On behalf of the Brecksville-Broadview
Heights School District Board of Education

Date